BlockTrust Network™

Terms of Services

1. Description of BlockTrust Network™ and These Terms of Services.

Thank you for choosing BlockTrust Network™! Ledgerspace LLC ("LS", "us", "we", "our") provides its products and services, defined further herein, to you the user subject to the terms and conditions of these Terms of Services (the "Terms"). LS's BlockTrust Network™ internet based BlockTrust Network™ Portal at the following website: https://blocktrustnetwork.com (the "Portal") have numerous capabilities and associated services (individually and collectively referred to as the "Services" or "BlockTrust Network™"). By using BlockTrust Network™ you agree to the Terms. Unless explicitly stated otherwise, any new features that we may add to BlockTrust Network™ will also be subject to these Terms, and any other special terms of service referenced in the new feature. The Portal and Services are intended to be used as a tool of convenience for your internal business purposes in connection with managing a beef cattle business and for no other purpose.

These Terms may be updated by us from time to time, and we encourage you to revisit this page often and review the Terms. In addition to these Terms, when using Ledgerspace owned or operated services, you may also be subject to any additional posted guidelines applicable to such services.

The Portal and Services are not intended for the use of minors or individuals under the age of eighteen (18). If you are under eighteen (18), please do not provide any personal information to us and please do not download or use the Portal. By clicking the "Accept" button, downloading, accessing and/or using the Portal, you affirm that you are eighteen (18) years old or older and agree to be bound by this Agreement.

2. Ledgerspace Privacy Policy.

You understand and agree that when you use BlockTrust Network™, you are consenting to the collection and use of information provided by you and about your use of BlockTrust Network™ in accordance with the Privacy Policy.

3. Use of Information.

You may make concurrent personal and/or commercial use of the information you input, receive from, and can access on BlockTrust Network™ (the "User Information") excluding Ledgerspace's "Proprietary Information" (defined herein below). By using the Services, you agree not to sell, store, distribute, transmit, display, reproduce, modify, migrate, create derivative works from, or otherwise exploit any of the User Information content or data related to any portion of the Services.

4. Survey Responses, Feedback, and Other Contributions to Ledgerspace.

By submitting livestock operation data, herd data, expected progeny data, ideas, survey responses, advertising responses, suggestions, documents, comments, and/or proposals ("Contributions") to Ledgerspace through its Portal you acknowledge and agree that: (a) your Contributions do not contain confidential or proprietary information; (b) you own the rights to submit the Contributions and in doing so will not infringe or violate the rights of any third party; (c) Ledgerspace is not under any obligation of confidentiality, express or implied, with respect to the Contributions; (d) your Contributions automatically constitute a grant to Ledgerspace of an irrevocable, non-exclusive, royalty free right and license to use the Contributions on all platforms and on all media (current and future) and Ledgerspace shall be entitled to use, copy, modify, or disclose (or choose not to use or disclose), delete in its entirety, adapt, publish, translate, create derivative works from and/or sell and/or distribute such Contributions for any purpose, in any way, in any media worldwide; (e) Ledgerspace may have something similar to the Contributions already under consideration or in development; and (f) you are not entitled to any compensation or reimbursement of any kind from Ledgerspace under any circumstances for your Contributions.

5. Registration and Enrollment in BlockTrust Network™.

To obtain access to certain services from Ledgerspace hereunder, and to access and utilize the Portal, and enrollment in BlockTrust Network™, you will be required to register and enroll with Ledgerspace and to make periodic payments for an end user license fee under the terms and conditions described at registration (the "User License Fee," further defined in the End User License Agreement). As a part of the registration and enrollment process you will be given a periodic rate for the User License Fee in order to use the Portal and otherwise enroll in BlockTrust Network™. All terms and conditions related to the User License Fee are subject to change from time to time by notice given by Ledgerspace. As part of the registration process, you will be required to select a username and a password. You agree that the information you supply during that registration process will be accurate and complete, and that you will not register under the name of another person. Failure to provide accurate and timely information may result in your account being closed and/or your access to content provided through your account being suspended, discontinued, or removed. We reserve the right to disallow use of a username that we deem offensive or inappropriate. You will be responsible for preserving the confidentiality of your password and for all actions of persons accessing BlockTrust Network™ through any username/password assigned to you. You will notify Ledgerspace's Customer Services Department of any known or suspected unauthorized use of your account via email. Ledgerspace reserves the right to disclose any information we collect through user accounts and registrations in accordance with our Privacy Policy. All payments received for the User License Fee and all other payments made to Ledgerspace by the User for the Portal, Services, and BlockTrust Network™ are non-refundable.

6. Modifications and Termination of Services.

Ledgerspace reserves the right at any time and from time to time to modify, update, suspend or discontinue all or part of the Services for any reason with or without notice to you. All terminations will be made in Ledgerspace's sole discretion, and you agree that Ledgerspace will not be liable for any termination of your use of or access to the Services.

7. Ledgerspace's Proprietary Rights.

You acknowledge and agree that the Portal and all protected materials on BlockTrust Network™ contain proprietary information and data that is protected by applicable copyright, trademark and other intellectual property laws (the "Proprietary Information" or Ledgerspace's "Proprietary Information"). All materials on BlockTrust Network™, including such Proprietary Information, may only be used for personal, non-commercial purposes, and you agree not to sell, transfer, reproduce, duplicate, distribute, publish, modify, migrate, store, copy or transmit any material from BlockTrust Network™ unless and until you have obtained our prior written consent. The Proprietary Information covered by this prohibition includes, without limitation, the software programming and html and other code contained in the Portal, Ledgerspace web site, and any text, graphics, logos, photographs, audio or video material or stills from audiovisual material available through BlockTrust Network™.

8. Use of Ledgerspace Logos or Trademarks.

Regarding any of Ledgerspace's logos or trademarks ("Ledgerspace Marks"), you agree that all of the Ledgerspace Marks are the property of Ledgerspace and agree that you will not use the Ledgerspace Marks without Ledgerspace's prior written permission.

9. No Illegal Use.

As a condition of your use of and access to BlockTrust Network™, you agree not to use the Services for any unlawful purpose or in any way that violates these Terms.

10. No Damaging Use.

You also agree not to use the Services in any way that could damage, disable, overburden, or impair the Portal, BlockTrust Network™ or any Ledgerspace server, or the associated networks, or interfere with any other party's use and enjoyment of any Services.

11. Jury Trial Waiver.

YOU AND LEDGERSPACE EXPRESSLY AND KNOWINGLY WAIVE THE RIGHT TO TRIAL BY JURY. THIS MEANS THAT ANY CLAIMS AGAINST EACH OTHER WILL BE RESOLVED BY A JUDGE RATHER THAN A JURY.

12. Disclaimer of Warranties.

You Expressly Understand and Agree That:

A. Your use of the Services is at your sole risk. Ledgerspace provides the Services to you on an "as is" and "as available" basis “with all faults.” Ledgerspace and its owners, shareholders, subsidiaries, affiliates, officers, employees, agents, partners and licensors expressly disclaim all warranties of any kind, whether express or implied, including, but not limited to the implied warranties of merchantability, fitness for a particular purpose and non-infringement.

B. Ledgerspace and its owners, shareholders, subsidiaries, affiliates, officers, employees, agents, partners and licensors make no warranty that (i) the Services will meet your requirements; (ii) the Services will be uninterrupted, timely, secure or error-free; (iii) the results that may be obtained from the use of the Services will be accurate or reliable; (iv) the quality of any products, services, information or other material accessed, purchased or obtained by you through the Services will meet your expectations; and (v) any errors will be corrected. This provision may not be enforceable in all jurisdictions, so the limitations and exclusions in this section may not apply to every user in the event it is deemed unenforceable by a court of competent jurisdiction.

C. All material and information obtained using the Services is accessed at your own discretion and risk, and you will be solely responsible for any damage to your computer system or loss of data that results from the accessing of any such material.

D. No advice or information, whether oral or written, obtained by you from Ledgerspace or its affiliates or partners through or from the Services shall create any warranty whatsoever.

13. Limitation of Liability.

A. You expressly understand and agree that Ledgerspace and its owners, shareholders, subsidiaries, affiliates, officers, employees, agents, partners and licensors shall not be liable to you for any direct, indirect, incidental, special, consequential or exemplary damages, including, but not limited to, damages for loss of profits, goodwill, use, data or other intangible losses (even if Ledgerspace has been advised of the possibility of such damages), resulting from: (i) the use or the inability to use the Services; (ii) the cost of procurement of substitute goods or services resulting from any goods, data, information or services obtained or received or transactions entered into as a result of your use of the Services; (iii) statements or conduct of any third party related to the Services; or (iv) any other matter relating to the Services. This provision may not be enforceable in all jurisdictions, so the limitations and exclusions in this section may not apply to every user in the event it is deemed unenforceable by a court of competent jurisdiction.

B. YOU FURTHER AGREE, CONSENT, AND ACKNOWLEDGE THAT LEDGERSPACE’S ENTIRE LIABILITY TO YOU UNDER THE TERMS AND IN CONNECTION WITH THE APPLICATION, THE PORTAL, AND THE SERVICES SHALL BE LIMITED TO THAT SUM WHICH YOU HAVE PAID LEDGERSPACE OR A THIRD PARTY BILLING AGENT FOR THE USE OF THE APPLICATION, PORTAL, AND THE SERVICES.

14. Indemnity and Release.

When you use Ledgerspace, you are agreeing to indemnify Ledgerspace, its owners, shareholders, subsidiaries, affiliates, officers, employees, partners, and licensors and hold them harmless from all claims and expenses, including attorney's fees, arising from your use of the BlockTrust Network Web site, your use of the Services, or your submission of Contributions as set forth in Section 4 above. By using BlockTrust Network you are agreeing to release Ledgerspace and its owners, shareholders, subsidiaries, affiliates, officers, employees, partners, and licensors from any and all claims, fees, costs, damages and obligations of any kind whatsoever that you may have against them arising out of or in any way related to such claims or obligations and to any disputes regarding use of ideas and/or related materials submitted to Ledgerspace. You hereby agree to waive all laws that may limit such releases.

15. Changes and Updates to These Terms of Services.

Ledgerspace may occasionally update or change these Terms, so we encourage you to view them often. Your continued use of the Services constitutes your agreement to these Terms and any updates.

16. General.

A. Choice of Law & Venue. The Terms and the relationship between you and Ledgerspace shall be governed by the laws of the State of Missouri without regard to its conflict of law provisions.

B. Waiver and Severability of Terms. The failure of Ledgerspace to exercise or enforce any right or provision of the Terms shall not constitute a waiver of such right or provision. If any provision of the Terms is found by a court of competent jurisdiction to be invalid, the parties nevertheless agree that the court should endeavor to give effect to the parties' intentions as reflected in the provision, with all remaining provisions of these Terms of Use remain in full force and effect.

C. Entire Agreement. The Terms constitutes the entire agreement between you and Ledgerspace and governs your use of the Services, superseding any prior Terms with respect to the Services. You also may be subject to additional terms and conditions that may apply when you use or purchase certain other Ledgerspace services, affiliate or third-party services.

D. Statute of Limitations. You agree that any claim, demand, or cause of action arising out of or related to the Services or your access or visit to Ledgerspace or these Terms must be filed by you within one (1) year after such claim, demand, or cause of action arose, or it is forever barred.

E. Links. The Portal may have third party links and resources provided for your convenience but said third parties' terms and conditions apply once you leave Portal.

F. Conflict. Please note that your use of the Portal and related Services are, in addition to the Terms, further subject to the then-current versions of the End User License Agreement and Privacy Statement. In the event a court of competent jurisdiction deems there to be a conflict between the Terms and the End User License Agreement, the End User License Agreement shall govern.

17. Reporting Violations to the Terms.

Please report any violations of the Terms to Ledgerspace customer service using the following contact information: Gregg Barfield, 3515 Longmire, College Station, TX 77845, or by email at gregg,barfield@ledgerspace.net.

18. Procedure for Making Claims of Copyright Infringement.

Ledgerspace Incorporated and its affiliated organizations respect the intellectual property of others, and we ask our users, content partners, and those contributing content to the Portal to do the same. If you believe that your copyrighted work has been copied and is accessible via the Portal in a way that constitutes copyright infringement, you may notify us by providing our copyright agent with sufficient information to allow us to locate the material, including the following information:

A. The electronic or physical signature of the owner of the copyright or the person authorized to act on the owner's behalf.

B. A description of the copyrighted work that you claim has been infringed and a description of the infringing activity.

C. Identification of the location where the original or an authorized copy of the copyrighted work exists, for example the URL of the web site where it is posted or the name of the book in which it has been published.

D. Identification of the URL or other specific location on this site where the material that you claim is infringing is located.

E. Your name, address, telephone number and email address.

F. A statement by you that you have a good faith belief that the disputed use is not authorized by the copyright owner, its agent, or the law.

G. A statement by you, made under penalty of perjury, that the above information you provide us is accurate and that you are the copyright owner or are authorized to act on the behalf of copyright owner.

Our agent for notice of claims of copyright infringement on this site can be reached as follows:

By mail: Gregg Barfield, 3515 Longmire, College Station, TX 77845

By phone: (979) 219-3451

By email: gregg.barfield@ledgerspace.net

18. Non-Acceptance of Terms and Conditions.

IF YOU DO NOT AGREE TO THE TERMS AS PROVIDED FOR HEREINABOVE, DO NOT ACCESS OR USE THE APPLICATION, PORTAL, OR SERVICES. YOU UNDERSTAND AND AGREE THAT LEDGERSPACE MAY TERMINATE YOUR ACCESS TO THE APPLICATION, PORTAL, AND/OR SERVICES AT ANY TIME, IN LEDGERSPACE'S SOLE DISCRETION.